

any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

In this matter, while Plaintiff did not include the particular admissions at issue in their moving papers, they did include them in Exhibit A of their Proposed Order, which was timely filed and served on the Defendant. Moreover, the Proposed Order included proof of service indicating that Plaintiff properly served Defendant with the initial Request for Admissions.

Moreover, the Plaintiff included a declaration justifying the sanction amount of \$60.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's Proposed Order (filed November 3, 2025) shall be deemed admitted.

Plaintiff to draw and electronically file Order.

4. 9:00 AM CASE NUMBER: L24-09645

CASE NAME: WELLS FARGO BANK, N.A. VS. RAMIRO FLORES

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS; MPA; REQ FOR JUDICIAL NTC; NTC OF LODGING; JUDGMENT**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings on October 13, 2025, (Motion), as well as a Request for Judicial Notice (Judicial Notice). The Motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that there is only one cause of action (Breach Of Contract) listed in the Complaint.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$11,588.57 on a credit card account. See Complaint filed September 13, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Plaintiff also provided a declaration indicating costs totaling \$430.

Defendant’s Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered September 16, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$11,588.57. See Deemed Admitted Order.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Breach of Contract
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint
3. Defendant became indebted in the amount of \$11,588.57 on the subject credit card account, which amount is due and owing to Plaintiff.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file electronically their Proposed Order for signature.

5. 9:00 AM CASE NUMBER: L24-10899

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. ANGAD SINGH

***HEARING ON MOTION IN RE: FOR ORDER AMENDING DEFAULT JUDGMENT**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

I. Background

Plaintiff American Express National Bank (Amex) filed this limited civil action against defendant Angad Singh to recover amounts allegedly due on a credit card account. The complaint, filed December 11, 2024, prayed for damages in the amount of \$12,853.55, plus costs.

Defendant failed to respond to the complaint, and the clerk entered defendant's default on May 8, 2025. On September 11, 2025, the clerk entered a default judgment in favor of plaintiff in the amount of \$10,792.57. According to plaintiff, the judgment understated the amount owed because plaintiff's counsel mistakenly credited payments to which defendant was not entitled.

On October 30, 2025, plaintiff filed the present motion seeking relief under Code of Civil Procedure (CCP) section 473(b), supported by a declaration of counsel admitting the error in calculating credits and requesting correction of the judgment amount.

II. Analysis

A. Scope of Relief Available Under CCP Section 473(b)

Plaintiff's motion is made pursuant to CCP section 473(b), which provides for both discretionary and mandatory relief from a default or default judgment. The statute states, in pertinent part:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

"[W]henever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

Plaintiff's motion was timely made less than six months after entry of default on May 8, 2025. Plaintiff filed the present motion on October 30, 2025, which is within the six-month jurisdictional period. The